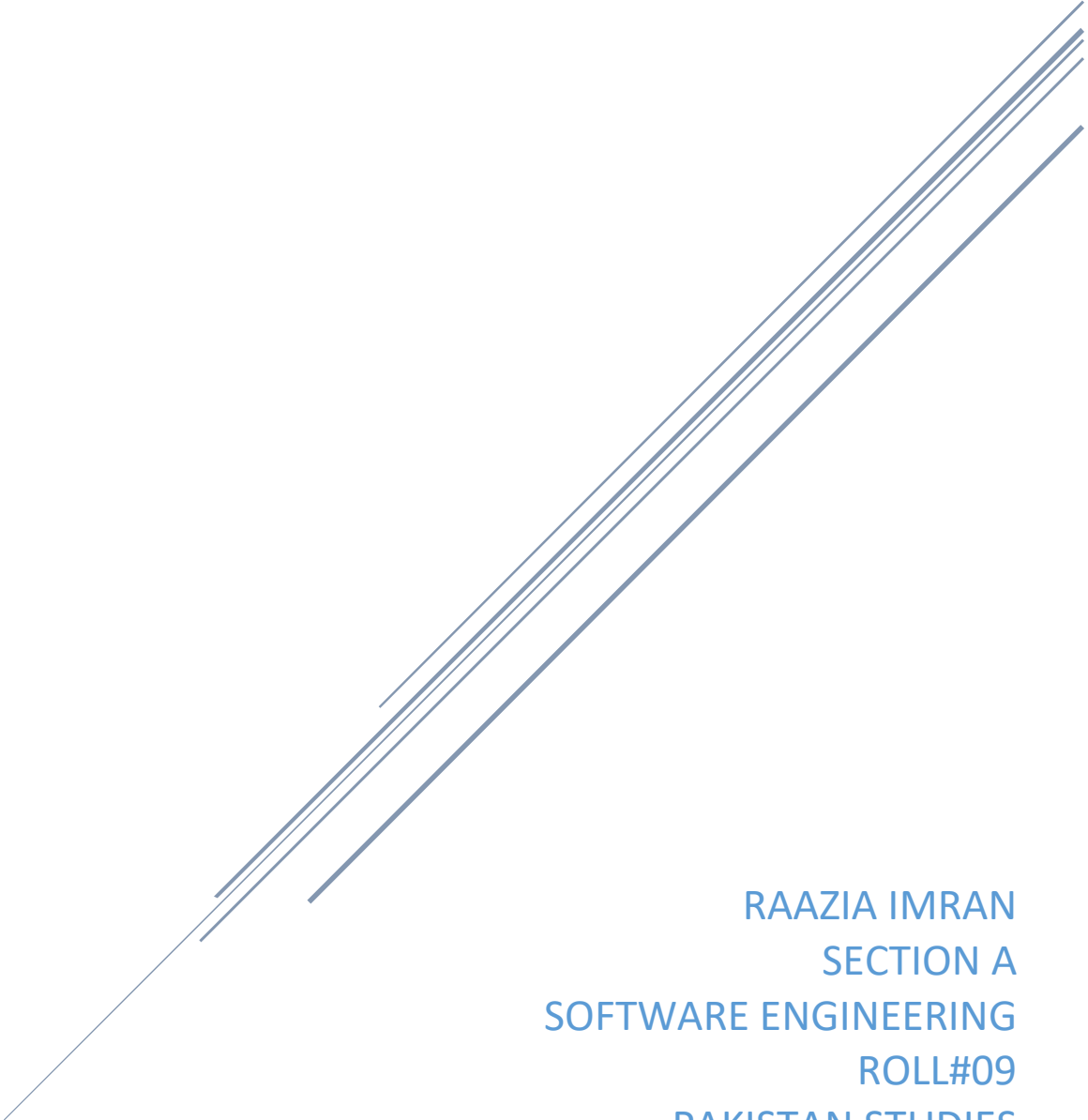


CONSTITUTIONAL CRISIS OF PAKISTAN: A HISTORICAL STUDY



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ABSTRACT

After a long struggle of Muslims of United India, Pakistan came into being on 14th August 1947. The Indian Independence Act 1947 gave power to the two states, India and Pakistan, to partially modify the Government of India Act 1935. That's why Pakistan was ruled under the Indian Independence Act, which was an amended version of Government of India Act 1935. Under this Act, the Governor General of Pakistan would have to be the representative of the British Crown until Pakistan formulates its own Constitution. So, immediate formulation of its own constitution was a challenge for the newly born country. According to the Indian Independence Act, the first constitutional assembly of Pakistan was formulated in 1947. The First Constitutional Assembly further framed a Basic Principles Committee to decide the lines on which the new constitution should be based. The findings of the Basic Principles Committee were contained in a document called the Objective Resolution, which was passed on **12 March 1949**. The Basic Principles Committee presented two reports that were thought controversial and no result could be reached. Finally, on **29 February 1956**, Pakistan's first constitution was adopted, which was enforced on 23 March 1956.

INTRODUCTION

Religion plays an important role as a primal identity in politics. In politics, religion has been misused rather than used in state construct of nation-building in Pakistan. Mixing religion with politics has not only induced a sense of insecurity among the minorities but very often has limited their freedom of expression. Religion in the context of a secular state has a very limited role for the state, but in the case of democracy and party politics, it plays a greater role in terms of political mobilization. Here a question arises: has democracy sharpened religious cleavages? The answer is in the affirmative, because mass mobilization is one of the fundamental principles of democracy.

[Strategic Analysis:
A Monthly Journal of the IDSA
[December 1998 \(Vol. XXII No. 9\) \]](#)

ISLAM IN POLITICS: POST-INDEPENDENCE ERA

After Pakistan's creation, debates emerged over the state's ideology, with Jinnah advocating for equal citizenship. Political elites favored a secular approach, limiting Islam to cultural identity, while religious groups pushed for Sharia law. Islam was used to unify the nation and suppress ethnic divides, but it failed to replace sub-national identities. Power struggles among local and refugee leadership intensified regional tensions, shifting discrimination from religion to ethnic and cultural lines.

The framing of Pakistan's Constitution was delayed partly due to Jinnah's reluctance to give religion a dominant role. After his death, Prime Minister Liaquat Ali Khan formed a committee of ulema to provide Islamic guidelines. The 1949 Objectives Resolution faced criticism from both Hindus and radical Islamists. While the 1956 Constitution incorporated some Islamic principles and declared Pakistan an Islamic Republic, it did not make Islam the state religion.

[Strategic Analysis A Monthly Journal of the IDSA [December 1998 \(Vol. XXII No. 9\)](#) *Islam and the Ideology of Pakistan* By Smruti S. Pattanaik *]

The Objective Resolution 1949

The first step towards the framing of Constitution was taken by Constituent Assembly in March 1949 when it passed a Resolution on the “Aims and Objectives of the Constitution”, popularly known as the **Objective Resolution**. It laid the foundation of the Constitution and indicated the broad outlines of its structure. It was described as the most important occasion in the life of Pakistan.

The Objectives Resolution asserts Pakistan's

- Sovereignty under Allah
- Governance through elected representatives
- Alignment with Islamic principles
- Protection of minority rights
- Guarantee of fundamental freedoms
- Establishment of Pakistan as a federation

- Judicial independence

[Usman. (2023, January 23). What is the Importance of the Objective Resolution of Pakistan? Retrieved August Thursday, 2023, from learnatnoon.com: <https://www.learnatnoon.com/s/en-pk2/importance-of-objective-resolution-of-pakistan/>]

FACTORS LEADING TO DELAY IN MAKING OF CONSTITUTION OF PAKISTAN

The delay in framing Pakistan's Constitution until 1956 was due to several interrelated factors:

- 1. Power Transfer Issues:** Disagreements over central versus provincial powers delayed the process.
- 2. Language Conflict:** Disputes between Urdu and Bengali speakers complicated governance and representation.
- 3. Provincialism:** Following Jinnah and Liaquat Ali Khan's deaths, regional loyalties grew, hindering unity.
- 4. Minority Rights:** Concerns about representation and rights of minorities created further challenges.
- 5. Federal Structure Debate:** Conflicts over the federal system's design delayed consensus.
- 6. Government Form:** Unresolved issues about adopting a presidential versus parliamentary system added complexity.
- 7. Islamic Definition:** The need to define Islam amid diverse sects complicated constitutional debates.
- 8. Religious Conflicts:** Tensions over the Qadyani community's beliefs created hurdles in drafting the Constitution.
- 9. Assembly Ineffectiveness:** Low attendance and engagement in Assembly meetings reflected a lack of urgency toward constitution-making.
- 10. Dual Responsibilities:** Assembly members were also involved in government roles, limiting their focus on constitution-making.

11. Limited Assembly Output: The Assembly's performance was primarily restricted to passing a few laws and resolutions, delaying constitutional work.

[Raja, S. H. (2022, March 2). Constitution-Making in Pakistan during the 1950s: Causes of Delay. Retrieved August Tuesday, 2023, from Medium: <https://shahidhaja.medium.com>]

[Pak. Journal of Int'l Affairs, Vol 6, Issue 2 (2023) Constitutional Crisis of Pakistan: A Historical ... Nasir Abbas Lecturer Pakistan Studies]

These factors collectively contributed to the protracted process of creating Pakistan's first Constitution.

NEITHER SECULARISM, NOR THEOCRACY: THE 1956 CONSTITUTION

The making of the Pakistani Constitution was a very delicate exercise because of the lack of any substantial consensus regarding the role of Islam in the new state. On the one hand, Muslim League leaders were in favor of a secular regime. On the other hand, traditionalists and Islamists wanted an Islamic state. The Ulema desired to enshrine the principle of the supremacy of the shariah, while the politicians, or most of them, found this principle acceptable so long as it was not clearly defined. The Muslim League leaders could not go against Islam, but they wanted to keep its role unclear. In mid-April 1949, the 25 men of the Basic Principles Committee in charge of drafting the Constitution decided "to set up a board of experts consisting of reputed Scholars well versed in Ta'limat-i-Islamia to advise on matters arising out of the Objectives Resolution.

[Research Questions / Questions de recherche – n° 41 – September 2012 <http://www.ceri-sciences-po.org/publica/qdr.htm>]

CONCLUSION

After the creation of Pakistan, the political maturity was lacking in the country which gave birth to Constitutional crisis in the country and politicians failed to reach conclusive findings on the basis of which Constitution had to be formulated. It took

a long period of **9 years** to create the First Constitution for the country. During this enormous period, the country had seen several crest and trough. The things worked in an apple pie order till the death of Muhammad Ali Jinnah, after that there was no single politician which could be relied on. The political instability took birth. That's why it has been seen that the several changes were made on political seats within a period of 9 years. It is easy to conclude that Pakistan faced a political instability in the first decade after its creation which caused the Constitution making delayed in Pakistan.

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